

Form No: HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

Crl. Misc. No. 10529-B of 2025

Amir Vs. The State etc.

No. of order/ proceeding	Date of order/ proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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13.01.2026

Mr. Muhammad Usman Sharif Khosa, Advocate, for the petitioner.

Mr. Shahid Aleem, Additional Prosecutor General with Ghulam Abbas SI SHO.

M/s. Muhammad Nawaz Khan Sadozai and Javed Ahmad Khan, Advocates, for the complainant.

Through this petition in the terms of Section 497 Cr.P.C., the petitioner has sought post arrest bail in case FIR No. 200/2025 dated 20.04.2025, registered under sections 302, 324, 337-A(i), 337-A(ii), 337-L(2), 109, 148, 149 PPC at Police Station Saddar Fazilpur, District Rajanpur.

2. According to the FIR, on 20.04.2025 at around 5:00 p.m., the complainant was intercepted on his way home by the petitioner alongwith his co-accused, who allegedly assaulted him, causing injuries and threats and then fled away from the scene.

3. After hearing the learned counsel for the parties and perusing the record, it is still premature to draw any final conclusion at this stage. In any case, in view of the facts and medical evidence, the principle of the eggshell skull rule is squarely attracted, making the petitioner liable for the resulting injuries and death, irrespective of any pre-existing condition of the deceased. Even if the petitioner resists the applicability of

Section 322 P.P.C., it is too early at this stage to consider such objections. Determination of the applicability of this provision falls within the domain of the learned trial court while framing the charges and during the course of trial. As per the allegations in the FIR, the petitioner is reported to have inflicted a direct blow on the head of the deceased, which, in light of the medical evidence, had a direct causal link to the injuries and eventual death. The investigation record clearly indicates the petitioner's active participation in causing the specific injury.

4. The medical record confirms that the deceased suffered serious injuries. While the eggshell head skull rule suggests that the severity of injuries may have been exacerbated by the victim's pre-existing condition, this does not diminish the petitioner's liability. The petitioner's assault, armed with weapons, directly caused the injuries and posed a threat to life, as corroborated by medical evidence and eyewitness testimony.

5. Considering the nature and seriousness of the offence, the manner in which it was committed and the injuries inflicted, it cannot be held that the petitioner is entitled to bail at this stage. The argument that the injuries were aggravated due to the victim's pre-existing vulnerability does not absolve the petitioner of criminal responsibility. This view is further supported by the Supreme Court in Rashid Ramzan vs. The State and others (2022 SCMR 2111), where it was held that when a petitioner is specifically nominated for a direct act causing death, supported by medical evidence, prompt FIR and eyewitness testimony, bail cannot be granted merely on the basis of a cross-version or because co-accused were released. In that case, the accused had fired at the head of the deceased, resulting in death and sufficient material connected him to the crime, despite claims of provocation or *mala fide* allegations. Similarly, in the instant matter, the petitioner is alleged to have inflicted a direct blow with a *danda* on the head of the

deceased, causing serious injuries and eventual death, as corroborated by medical evidence and eyewitness accounts. The fact that co-accused may have been granted bail or that the petitioner contests applicability of certain sections does not diminish the gravity of the offence or the *prima facie* material against him. Therefore, applying the reasoning in *Rashid Ramzan*, it is clear that no exceptional circumstances exist to justify bail.

6. In view of the foregoing, no exceptional circumstances exist to justify the grant of bail and the petitioner's continued detention is necessary in the interest of justice, to ensure the integrity of the investigation and trial proceedings.

7. For what has been discussed above, this petition having no merit is **dismissed**.

(Ch. Sultan Mahmood)
Judge

Approve d for reporting

Judge

Shafqat/*